



# ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session*  
*Majority Research Staff*

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**[HB 2135](#)**: liability; diversity; equity; inclusion laws

## **WAY FLOOR AMENDMENT**

1. Removes the emergency clause from the bill.

WAY FLOOR AMENDMENT  
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2135  
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 12, chapter 6, Arizona Revised Statutes, is  
3 amended by adding article 20, to read:

4 ARTICLE 20. PROHIBITED DIVERSITY, EQUITY AND INCLUSION POLICIES

5 12-784. Prohibition on diversity, equity and inclusion  
6 policies; civil liability; statute of limitations;  
7 definitions

8 A. A PERSON WHOSE RIGHTS ARE VIOLATED MAY COMMENCE A CIVIL ACTION  
9 AGAINST A COVERED ENTITY THAT VIOLATES A STATE OR FEDERAL LAW PROHIBITING  
10 A DIVERSITY, EQUITY AND INCLUSION POLICY.

11 B. A PERSON WHO PREVAILS AGAINST A COVERED ENTITY IS ENTITLED TO  
12 THE FOLLOWING RELIEF:

13 1. DECLARATORY RELIEF.

14 2. INJUNCTIVE RELIEF.

15 3. DAMAGES IN THE AMOUNT OF AT LEAST \$100,000 AGAINST THE COVERED  
16 ENTITY.

17 4. COMPENSATORY DAMAGES.

18 5. COURT COSTS AND REASONABLE ATTORNEY FEES.

19 C. A PERSON SHALL COMMENCE A CIVIL ACTION PURSUANT TO THIS SECTION  
20 NOT LATER THAN THREE YEARS AFTER THE VIOLATION OCCURRED.

21 D. FOR THE PURPOSES OF THIS SECTION:

22 1. "COVERED ENTITY" MEANS A CORPORATION, ORGANIZATION, INSTITUTION  
23 OR AGENCY IN THIS STATE THAT IS SUBJECT TO A STATE OR FEDERAL LAW  
24 PROHIBITING A DIVERSITY, EQUITY AND INCLUSION POLICY.

25 2. "DIVERSITY, EQUITY AND INCLUSION POLICY":

26 (a) MEANS A POLICY THAT IS KNOWN AND PRACTICED AS DEI, CRITICAL  
27 RACE THEORY OR ANTI-RACISM OR ANY OF THE FOLLOWING CONCEPTS:

28 (i) ONE RACE OR SEX IS INHERENTLY SUPERIOR TO ANOTHER RACE OR SEX.

1 (ii) THE UNITED STATES IS FUNDAMENTALLY RACIST OR SEXIST.

2 (iii) AN INDIVIDUAL, BY VIRTUE OF THE INDIVIDUAL'S RACE OR SEX, IS  
3 INHERENTLY RACIST, SEXIST OR OPPRESSIVE, WHETHER CONSCIOUSLY OR  
4 UNCONSCIOUSLY.

5 (iv) AN INDIVIDUAL SHOULD BE DISCRIMINATED AGAINST OR RECEIVE  
6 ADVERSE TREATMENT SOLELY OR PARTLY BECAUSE OF THE INDIVIDUAL'S RACE OR  
7 SEX.

8 (v) A MEMBER OF ONE RACE OR SEX CANNOT AND SHOULD NOT ATTEMPT TO  
9 TREAT OTHERS WITHOUT RESPECT DUE TO RACE OR SEX.

10 (vi) AN INDIVIDUAL'S MORAL CHARACTER IS NECESSARILY DETERMINED BY  
11 THE INDIVIDUAL'S RACE OR SEX.

12 (vii) AN INDIVIDUAL, BY VIRTUE OF THE INDIVIDUAL'S RACE OR SEX,  
13 BEARS RESPONSIBILITY FOR ACTS COMMITTED IN THE PAST BY OTHER MEMBERS OF  
14 THE SAME RACE OR SEX.

15 (viii) AN INDIVIDUAL SHOULD FEEL DISCOMFORT, GUILT OR ANGUISH OR  
16 ANY OTHER FORM OF PSYCHOLOGICAL DISTRESS BECAUSE OF THE INDIVIDUAL'S RACE  
17 OR SEX.

18 (ix) MERITOCRACY OR TRAITS SUCH AS A HARD WORK ETHIC ARE RACIST OR  
19 SEXIST OR WERE CREATED BY A PARTICULAR RACE TO OPPRESS ANOTHER RACE.

20 (x) ALL INDIVIDUALS SHOULD BE COMPELLED TO BELIEVE IN, AND TO SPEAK  
21 IN A MANNER CONSISTENT WITH, THE CONCEPT THAT AN INDIVIDUAL CAN CHANGE THE  
22 INDIVIDUAL'S SEX OR GENDER.

23 (b) INCLUDES ANY OTHER FORM OF RACE OR SEX STEREOTYPING OR ANY  
24 OTHER FORM OF RACE OR SEX SCAPEGOATING.

25 <<Sec. 2. Emergency

26 This act is an emergency measure that is necessary to preserve the  
27 public peace, health or safety and is operative immediately as provided by  
28 law.>>

29 Enroll and engross to conform

30 Amend title to conform

MICHAEL WAY

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